सीमाशुल्क आयुक्त (आयात) का कार्यालय
OFFICE OF THE COMMISSIONER OF CUSTOMS (IMPORT),
मुंबई ज़ोन -III, जन संपर्क अनुभाग, हवाई माल संकुल
MUMBAI ZONE – III, PRO CELL, AIR CARGO COMPLEX,
सहार, अंधेरी (पूर्व), मुंबई- ४०० ०९९
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F.No. S/3-MISC-PRO-516/2013 ACC(I) Part 6 **Date: 21.09.2020**

MINUTES OF THE PERMANENT TRADE FACILITATION COMMITTEE MEETING HELD ON 28.08.2020

The monthly meeting of the Permanent Trade Facilitation Committee (PTFC) for Air Cargo Complex, Sahar, was held on 28.08.2020 at 03.00 pm and was Co-chaired by Shri Vijay Singh Chauhan, Commissioner of Customs (General), Shri Ananta Krishnan, Commissioner of Customs (Export) and Shri Vinayak Azaad, Commissioner of Customs (Import). In view of the government directives advising "social distancing" and restrictions on avoidable movements on account of the threat of Covid-19, the meeting was conducted via Web Conference.

The following officers and representatives from the stakeholder organizations participated in the meeting:

Name & designation	**Organization**
Shri M. K. Sarangi, Addl. Commissioner (Import)	Customs, ACC,Andheri
Shri Vishal Sanap, Addl. Commissioner (Import)	Customs, ACC, Andheri
Shri Prabhakar Kumar, Jt. Commissioner (Export)	Customs, ACC, Andheri
Shri M.H. Hingorani, AC (Import)	Customs, ACC, Andheri
Shri Bipin Jadhav, AC (Import)	Customs, ACC, Andheri
Shri Ashwini Bandekar, AC (Import)	Customs, ACC, Andheri
Shri Roshan Lal, AC (Import)	Customs, ACC, Andheri
Shri S C Das, AC (General)	Customs, ACC, Andheri
Name of attendees from stakeholder organizations	**Organization**
Shri Dushyant Mulani, Shri Sanjeev Harale, Shri Kaushal Thakkar, Shri Ketan Desai, Shri K.Shetty, Shri Ganpat Korde, Shri Shanakar Shinde	BCBA
Shri Bala Ayer	ACAAI
Shri Manoj Singh	MIAL
Shri Raj Dhule, Shri Jignesh	AIATSL

Shri Mark Fernandes		MSF Bombay
Shri Rishikesh		Siemens Healthcare
Shri Vasudevan, Shri Gaurav Dogar		DHL Express
Shri Venkatraman		DHL Logistics
Shri Newton Fernandes		All Nippon Airlines
Other attendees		
Shri Paresh Shah	Shri Nandan Kanchan	Shri Anwar Khan
Shri Mangesh Mali	Shri Sorab P Engineer	Smt. Chaitaly Mehta
Shri Rajiv Desai	Shri Sanjeev Harale	Shri Dayanand Kotian
Smt. Vaishali Kulkarni	Shri Abdul Gafume	Shri Paresh Sangani
Shri Prathmesh Sirambedkar	Shri Lynn Bothello	Shri Ashish Pednekar

At the outset, Commissioner of Customs (G) welcomed the members of Trade, Customs Broker Associations, Airlines Representatives, Custodian Representatives, and other stake holders present for the web-meeting.

Following agenda points were taken up:

A. <u>OPEN POINTS FROM LAST PTFC MEETING HELD ON 31.07.2020</u>

1. **EDI Systems needs to have inbuilt validation for capturing the date of feeding the Inward Date in the EDI system**

(BCBA)

Trade highlighted that on various occasions, it had been observed that IGM inward date which is filed after landing of aircraft, is filed on a date prior to landing date of flight. This results in levy of interest and late submission charge and also demurrage by Custodian, based on the incorrect updating of inward date.

Suggestion put forth by BCBA while submitting the Agenda Point:

"We request that inbuilt validation should be created in EDI system for capturing the accurate feeding time and date of inward-date, on real time basis."

Commissioner (G) observed that the charges levelled by BCBA are serious in nature and it would be appropriate that such charge against the custodian are made along with proper evidence. He assured that strict and swift action will be taken in this regard once the evidence is submitted by BCBA. Commissioner (G) also directed that

this complaint be taken up for further discussion in the next PTFC, in case BCBA does not submit the evidence before the said meeting.

Commissioner (G) directed BCBA to submit specific data in this regard and BCBA has submitted some documents pertaining to that data and same is looked into by Commissioner (G).

(Point open)

Fresh Agenda Points

BCBA

1. Request to provide more KIOSK - TOUCH SCREENS terminal

(Customs)

Presently only one touch screen is available at ACC. We propose to install few touch screens terminals at ACC and request to repair those touch screen which are out of order.

BCBA submitted that two KIOSK - TOUCH SCREENS terminals are to be installed one at light shed and other at heavy shed.

Commissioner (G) suggested that KIOSK should be installed at Turant Suvidha Kendra (TSK) to avoid gathering at office premises. However, BCBA desired to meet Commissioner (G) personally to discuss the issue and Commissioner (G) agreed with the same.

(Point Open)

2. Short collection of charges by MIAL on import consignments

(MIAL)

We refer to the short collection charges which is collected by MIAL. Primarily we have thoroughly checked the matter and discussed with MIAL Authorities. It has been observed that it is the Console agent who are giving incorrect chargeable weight to MIAL. Importer/ CB have no role to play in such short collection due to improper details given by Console Agents.

Hence, we suggest the following:

a) All Console agents are registered with MIAL and have their PD account with MIAL. Hence any short collection arising out of wrong information provided by

the Console agents, the concerned Console Agents account should be debited for short collection.

b) MIAL is requested to setup a mechanism wherein the chargeable weight should be directly uploaded in their system by the concerned Console Agents while releasing the online DO, thus avoiding the requirement of hard copy of HAWB.

c) Any instance of short collection notice should be flagged out with proper email communication by MIAL accounts team within 30 days of the incidence clearance. Necessary steps should be taken to ensure that accurate online information is exchanged between Airline, Console Agent and MIAL to avoid insistence on manual hard copy of MAWB / HAWB. This paperless initiative will help to maintain accurate declaration.

MIAL representative stated that they are in the process of digitalising all the data within two weeks. This paperless initiative will help to maintain accurate declaration.

This will also avoid the requirement of hard copy of HAWB. MIAL representative also stated that a circular is to be issued regarding debiting of PD account of console agent for any short collection arising out of wrong information provided by the console agent.

(Point Open)

3. Refund of excess demurrage charges collected during COVID-19 period

(MIAL)

We refer to Order vide F. NO. AV -2901214112020-ER dated 1.4.2020 (copy attached) issued by Ministry of Civil Aviation with regards to Demurrage payable to the Airport Operator/ Cargo Terminal Operator during COVID - 19 period. As per the order, 50 % demurrage waiver shall be applicable from 20.3.2020 to 16.4.2020. However, it is understood that 100 % demurrage charges have been recovered by MIAL.

In view of the above order, we request that 50 % demurrage charges should be refunded back.

Discussion

MIAL representative submitted that as per order demurrage waiver is being given, however specific data/instances where demurrage waiver has not been given, may be brought to the notice of the custodian for action in those specific cases.

(Point closed)

ACAAI

4. Import Consolidation

(MAIL)

For clearance of an import consignment that has come through a consolidator, we need two things; a) Delivery Order and b) originals of master airway bill and house airway bill. The payment for Delivery Order (DO) is made online by the importer / customs broker and the DO is released online by the consolidator to the custodian. We do not have to go to the consolidators' office for this purpose. But we have to collect the original documents from the consolidator because the original airway bills are required by the custodians, without which we cannot get delivery of the cargo that has been given OOC. For this purpose we are forced to go to the consolidators offices. On any given day, many of us customs brokers, who collect the documents from the consolidators, have to visit these various consolidators offices, who are located in various places in Mumbai. It is indeed time consuming and too labour intensive. Also, our person is made to wait for more than an hour to collect one document.

Suggestion

After the flight lands in Mumbai, the consolidator must hand over one copy of the original master airway bill and one copy of the original house airway bill to the custodian along with one copy of the IGM. This will totally eliminate the necessity of the importer or the customs broker going to the office of the consolidator's office to collect the documents. The importer or the customs broker receive their copy by mail in advance hence he does not require any originals. The customs broker only acts as a postman who collects the original MAWB and the HAWB and hands over to the custodian. It must be ensured that the consolidator hands over the documents to the custodian before the segregation is completed. Since the Delivery order is released online and if the original MAWB and HAWB is already handed over to the custodian by the consolidator, then, the importer or the customs broker need not visit the consolidator’s office.

We request that the above same procedure be adopted by the airlines as well. The airlines should hand over the original copy of the master airway bill along with one copy of the IGM to the custodian before the segregation is complete. In any case, the payments for the delivery order to the airlines are made online.

Discussion

MIAL representative stated that they are in the process of digitalising all the data at the earliest. This paperless initiative will eliminate requirement of physical copies of MAWB/HAWB/IGM.

(Point closed)

5. Inward Date

Nowadays customs have given us the facility of filing our bills of entry in advance. Even the assessment is done and we can pay the duty and be ready to clear the shipment as soon as the segregation is done. But it is important that the airline registers the inward date within the stipulated time, so that we can go for goods registration and complete our formalities for clearance of the shipment. Inward date must be filed within one hour of the flight landing.

Commissioner (G) stated that specific cases/data may be submitted in this regard to scrutinise and to resolve the same.

(Point open)

CATHAY PACIFIC CARGO

6. On behalf of Airline would like to raise the below point of process for amendment of re- export packages which arrive into BOM due to Human error of build up from our HUB or any other station. The process is very long and tedious and minimum takes a month to re-export. Have attached the process flow of the same for your perusal and if we can review and make it simpler and faster.

Re-Export Amendment Process

After Import check received excess pc on flight

⇩

Nil to addition process start

⇩

We have to prepare two file

1. File is Nil to addition file
2. File is re-export file

⇩

Amendment charges INR 1000/-paid for each file

⇩

After that Noting Dept –Both file amendment paper check & received OK

⇩

Noting Dept mark Supdt.-All amendment paper check & mark to Assistant Commissioner (AC)

⇩

AC will check first Nil to addition file & give penalty Amount.

⇩

Penalty amount paid.

⇩

Release no taken from E-FREIGHT

⇩

⇩

Amendment release

After 1st Nil to addition file release AC issue Order form.

⇩

1st file Nil to Addition process finish - after nil to addition 2nd file check by AC and mark to Shed AC

Shed AC mark to Supdt for paper check

Supdt mark to Appraisal – mark to Examiner – Excess piece 100% examine

Examiner prepare 100% examine report mark to Shed AC

Group ACSIIB ACsend file to SIIB dept

Supdt check file & he prepare a Report

Supdt mark AC-he will give re-export penalty

Penalty Amount paid

AC prepare order form

CTM process Excess pc transfer to WH.

Commissioner (I) stated that we will scrutinise the process and will try to mitigate the same.

(Point closed)

LUFTHANSA CARGO

7. Submission of Noter set by email, to be digitally. At least by those Airlines who are able to submit the scanned copies. We already submit a similar set to AIU on email and have no issue since long time, its quick immediately after the flight check and no paper, today we are submitting almost 1000 of copies and would save time and storage issue, instead it would be saved digitally and refer any time. Which is also the need of hour to avoid so many airlines staff visiting your office for submission of same.

Commissioner (Imp) assured to look up into the matter before next PTFC.

(Point Open)

The meeting ended with thanks to the Chair.

This issue with the approval of Commissioner of Customs (General /Import/ Export), Mumbai Customs Zone-III.

Sd/21.09.2020
(M.K. Sarangi)
Addl. Commissioner of Customs (Import)
Air Cargo Complex, Mumbai

COPY TO:

1. Chief Commissioner of Customs, Zone-III, Mumbai - For kind information, please.
2. Pr. Commissioner / Commissioner of Customs, Import / Export / General, ACC.
3. All Addl./Jt./DC/AC Commissioner of Customs, Import / Export / General, ACC.
4. All members of PTFC meeting (via E-mail)
5. E &T Section/PSO Section for circulation in Export/General Commissionerate.
6. EDI Section- For uploading on ACC Website.
7. Asst, Drug Controller, ACC, Sahar.
8. Office copy. discussion